

House File 639

S-3162

1 Amend the amendment, S-3064, to House File 639, as amended,
2 passed, and reprinted by the House, as follows:

3 1. By striking page 1, line 1, through page 34, line 26, and
4 inserting:

5 <Amend House File 639, as amended, passed, and reprinted by
6 the House, as follows:

7 1. By striking everything after the enacting clause and
8 inserting:

9 <Section 1. Section 476.33, Code 2025, is amended by adding
10 the following new subsection:

11 NEW SUBSECTION. 5. For hearings initiated under this
12 chapter, a majority of the members of the commission shall be
13 present during any live testimony. If at any point during live
14 testimony at a hearing less than a majority of the members
15 are available for any reason, the meeting shall pause until a
16 majority of the members of the commission are available.

17 Sec. 2. Section 476A.4, Code 2025, is amended by adding the
18 following new subsections:

19 NEW SUBSECTION. 6. All hearings initiated under this
20 chapter shall follow the attendance rules governing commission
21 members as provided in section 476.33, subsection 5.

22 NEW SUBSECTION. 7. After a hearing, if notice by
23 publication was properly made, an operator of an electric power
24 generation and transmission facility and a property owner may
25 enter a voluntary agreement for an interest in the property
26 without regard to whether the property owner received notice
27 by mail.

28 Sec. 3. NEW SECTION. 476A.4A **Objections.**

29 1. If an applicant is exercising the power of eminent domain
30 pursuant to this chapter, a person, including a governmental
31 entity, whose rights or interests may be affected by the
32 proposed facility may file written objections.

33 2. All objections shall be on file with the commission
34 not less than five days before the date of hearing on the
35 application. However, the commission may permit the filing

1 of the objections later than five days before the hearing, in
2 which event the applicant must be granted a reasonable time to
3 respond to the objections.

4 3. If a facility is relocated due to an objection filed
5 pursuant to this section, the utilities commission shall not
6 require an applicant to resubmit an application for a permit
7 pursuant to section 479A.3.

8 4. Notwithstanding any other provisions in this section,
9 an objection filed by a government entity that is a regulatory
10 agency or city or county zoning authority subject to the
11 requirements of section 476A.5 shall only address items not
12 within the scope of section 476A.5.

13 Sec. 4. Section 476A.6, unnumbered paragraph 1, Code 2025,
14 is amended to read as follows:

15 The commission shall render a decision on the application in
16 an expeditious manner. The commission shall render a decision
17 on an application requesting the power of eminent domain no
18 later than one year after the request for eminent domain is
19 received by the commission. A certificate shall be issued to
20 the applicant if the commission finds all of the following:

21 Sec. 5. NEW SECTION. **476A.16 Access to lines — damages.**

22 1. Individuals or corporations operating transmission
23 lines for the facility shall have reasonable access to
24 the transmission lines for the purpose of constructing,
25 reconstructing, enlarging, repairing, or locating the poles,
26 wires, or construction and other devices used in or upon any
27 line, but shall pay to the owner of the lands and of crops on
28 the lands all damages to the lands or crops caused by entering,
29 using, and occupying the lands for those purposes. This
30 section shall not prevent the execution of an agreement between
31 the person, company, or corporation owning or operating the
32 lines and the owner of the land or crops regarding the use of
33 the land.

34 2. A claim for crop yield loss damages pursuant to this
35 section shall not be precluded from renegotiation under section

1 6B.52 on the grounds that the damages were apparent at the time
2 of settlement unless the settlement expressly releases the
3 person, company, or corporation owning or operating the lines
4 from claims for damages to the productivity of the soil. A
5 landowner that seeks damages under this section not subject to
6 a release shall notify the person, company, or corporation in
7 writing fourteen days prior to harvest in each year to assess
8 crop deficiency.

9 Sec. 6. NEW SECTION. **476A.17 Drainage tile — liability.**

10 For an applicant exercising the power of eminent domain
11 pursuant to this chapter, the operator of the electric power
12 generation and transmission facility shall be liable for
13 repairs of drainage tile installed prior to the installation of
14 the facility, when the installation, construction, operation,
15 maintenance, or repair of the facility is the proximate cause
16 of the damage to the drainage tile. The operator's liability
17 pursuant to this section shall continue for the life of the
18 electric power generation and transmission facility and shall
19 include all of the following:

- 20 1. The full replacement costs of the drainage tile,
21 including, without limitation, material, labor, and equipment.
22 2. The reclamation and restoration of topsoil as part of any
23 drainage tile repair.

24 Sec. 7. NEW SECTION. **476A.18 Land restoration standards.**

25 1. The commission shall adopt rules pursuant to chapter
26 17A regarding the restoration of agricultural lands following
27 construction of a facility subject to this chapter for which
28 the power of eminent domain was used. Rules adopted under this
29 section shall implement the following requirements, which shall
30 not apply within the corporate limits of a city, to any land
31 owned by the facility owner, or to any construction, activity,
32 or facility other than a facility as defined in this chapter:

- 33 a. A facility owner shall repair a damaged underground
34 drain tile as soon as practicable during construction of the
35 facility. Permanent repairs to the damaged underground drain

1 tile shall be completed as soon as practicable after the
2 initial construction of the facility is complete. The repairs
3 made to the damaged drain tile shall be of at least equal
4 quality, size, and flow capacity of the original drain tile.

5 *b.* Following the construction of the facility, the facility
6 owner shall remove from any easement area all rock larger than
7 three inches in average diameter not native to the soil of the
8 excavated land. The rock removed from the excavated land that
9 cannot be used to backfill shall be disposed of at a location
10 and in a manner agreed upon by the facility owner and the
11 landowner.

12 *c.* Upon completion of construction activities on a property,
13 the facility owner shall deep till agricultural land, including
14 right-of-way access points or roads traversed by heavy
15 construction equipment, to alleviate soil compaction. The land
16 shall be tilled at least eighteen inches deep in land used for
17 crop production and twelve inches deep in other lands unless
18 otherwise agreed to by the landowner.

19 *d.* Upon completion of the facility, the facility owner shall
20 restore the soil conservation practices and structures damaged
21 during construction of the facility to the elevation and grade
22 existing on the land prior to the construction. The soil used
23 to repair embankments intended to retain water shall be well
24 compacted. Any vegetation disturbed during construction shall
25 be reestablished, including cover crops when appropriate.

26 *e.* Following compaction of the land, agricultural land that
27 is not in row crop or small grain production at the time of
28 construction, including hay ground and land in conservation or
29 set-aside programs, shall be reseeded and a cover crop shall
30 be utilized when appropriate. Seeding for cover crops may be
31 delayed if the construction of the facility is completed too
32 late in the year for a cover crop to become established and is
33 not required if the land will be tilled in the following year.
34 The landowner may request ground cover to prevent soil erosion
35 in areas where construction on the facility is completed if the

1 season is not suitable for seeding a cover crop.

2 *f.* Unless agreed upon by the facility owner and the
3 landowner, the facility owner shall remove field entrances
4 or temporary roads built for the purpose of constructing the
5 facility upon the completion of construction and restore the
6 area to its previous use.

7 *g.* A facility owner shall use good utility practices for
8 constructing the facility in wet conditions, such as electing
9 to use matting or padding when utilizing heavy equipment. A
10 facility owner shall grade and till any rutted land to restore,
11 to the extent practicable, the original condition of the land
12 prior to the construction of the facility. If agreed upon by
13 the facility owner and the landowner, the landowner may repair
14 any damage caused by construction activities in wet conditions
15 and the facility owner shall reimburse the landowner for the
16 reasonable cost incurred to repair the damage. If a facility
17 owner utilizes heavy equipment in wetlands or mudflats, mats or
18 other measures shall be utilized to minimize soil disturbance.

19 *h.* The facility owner shall designate a point of contact for
20 inquiries or claims from an affected person. The designation
21 shall include a name, a telephone number, an email address, and
22 an address.

23 2. *a.* If a facility owner and a landowner dispute a
24 potential violation of the restoration standards provided in
25 subsection 1, the commission may appoint a qualified individual
26 to inspect the property for compliance. If the qualified
27 individual determines that there has been a violation of the
28 applicable restoration standards, the commission shall provide
29 oral notice, followed by written notice, to the facility owner
30 and the contractor operating for the facility owner and order
31 corrective action to comply with the restoration standards.
32 The facility owner shall be responsible for the costs of the
33 corrective action.

34 *b.* If the facility owner or the contractor for the facility
35 owner does not comply with a valid order for corrective

1 action issued by the commission, the commission may issue an
2 order requiring corrective action to be taken and may impose
3 civil penalties under section 478.29, which shall apply to a
4 violation of this section in lieu of section 476A.14.

5 *c.* The commission shall instruct the inspector appointed by
6 the commission regarding the content of the statutes and rules
7 and the responsibility of the inspector to require restoration
8 conforming with the standards established in subsection 1.

9 3. *a.* An applicant for a certificate shall file with the
10 application a written land restoration plan that documents how
11 the requirements and rules of subsection 1 will be met. The
12 applicant shall provide a copy of the plan to all landowners
13 of property that will be disturbed by the construction of the
14 facility.

15 *b.* Nothing in this section shall preclude the application
16 of provisions for protecting or restoring property that are
17 different than those prescribed in subsection 1, in rules
18 adopted under subsection 1, or in the land restoration plan,
19 if the alternative provisions are contained in agreements
20 independently executed by the facility owner and the landowner.
21 Independent agreements for land restoration between the
22 facility owner and the landowner shall be in writing and made
23 available to the commission upon request.

24 *c.* The commission may by waiver allow variations from the
25 requirements of subsection 1 if the facility owner requesting a
26 waiver satisfies the standards set forth in section 17A.9A and
27 if the alternative methods proposed by the facility owner would
28 restore the land to a condition as good as or better than as
29 provided for in subsection 1.

30 *d.* The commission may waive preparation of a separate
31 land restoration plan if the facility owner enters into an
32 agricultural impact mitigation plan or similar agreement
33 with the appropriate agencies of this state that satisfies
34 the requirements of subsection 1. If a mitigation plan or
35 agreement is used to fully or partially meet the requirements

1 of a land restoration plan, the statement or agreement shall
2 be filed with the commission and shall be considered to be,
3 or to be part of, the land restoration plan for purposes of
4 subsection 1.

5 4. Nothing in this section shall limit, expand, or otherwise
6 modify the rights of access and obligations for damages set
7 forth in section 476A.16.

8 5. The requirements of this section shall apply only to
9 facility construction projects commenced on or after June 1,
10 2025.

11 Sec. 8. NEW SECTION. 476A.19 Particular damage claims.

12 1. When the facility owner's interest in the landowner's
13 property was acquired by the exercise of eminent domain
14 pursuant to this chapter, compensable losses may include but
15 are not limited to any of the following:

16 a. Loss or reduced yield of crops or forage on the facility
17 right-of-way, whether caused directly by construction or from
18 disturbance of usual farm operations.

19 b. Loss or reduced yield of crops from land near the
20 facility right-of-way resulting from lack of timely access
21 to the land or other disturbance of usual farm operations,
22 including interference with irrigation or drainage.

23 c. Costs associated with the application of fertilizer,
24 lime, or organic material by the landowner to restore land
25 disturbed by construction to full productivity.

26 d. Loss of or damage to trees of commercial value that
27 occurs at the time of construction or restoration, or at the
28 time of any subsequent work by the individual, company, or
29 corporation operating the facility.

30 e. The cost of or losses in moving or relocating livestock,
31 and the loss of gain by or the death or injury of livestock
32 caused by the interruption or relocation of normal feeding.

33 f. Erosion and soil compaction on lands attributable to
34 facility construction.

35 g. Damage to farm equipment caused by striking debris or

1 other material reasonably associated with facility construction
2 while engaged in normal farming operations as defined in
3 section 480.1.

4 *h.* Damage to soil or water conservation structures caused
5 by construction, restoration, or subsequent work by the
6 individual, company, or corporation operating the facility
7 including but not limited to terraces, grassed waterways, water
8 and sediment control basins, ponds, saturated buffers, and
9 biofilters.

10 *i.* Damage to irrigation or drainage systems caused
11 by construction, restoration, or subsequent work by the
12 individual, company, or corporation operating the facility.

13 2. A claim for damages pursuant to this section shall not be
14 precluded from renegotiation under section 6B.52 on the grounds
15 that the damages were apparent at the time of settlement unless
16 the settlement expressly releases the individual, company,
17 or corporation operating the facility from the claim. The
18 landowner shall notify the individual, company, or corporation
19 in writing fourteen days prior to harvest in each year to
20 assess crop deficiency.

21 3. A landowner that incurred damage under this section
22 is eligible for compensation for damages. A landowner may
23 file a claim for damages against an individual, company, or
24 corporation operating the facility in small claims or district
25 court for a violation of this section.

26 Sec. 9. Section 478.2, subsection 2, paragraph a, Code 2025,
27 is amended to read as follows:

28 *a.* A member of the commission, the counsel of the
29 commission, or a presiding officer designated by the commission
30 shall serve as the presiding officer at each meeting, shall
31 present an agenda for such meeting, which shall include
32 a summary of the legal rights of the affected landowners,
33 and shall distribute and review the statement of individual
34 rights required under [section 6B.2A, subsection 1](#). At least
35 one member of the commission shall attend each informational

1 meeting. If at any point during the meeting no member of the
2 commission is available for any reason, the meeting shall pause
3 until at least one member of the commission returns. A formal
4 record of the meeting shall not be required.

5 Sec. 10. Section 478.2, subsection 4, Code 2025, is amended
6 to read as follows:

7 4. a. A person seeking rights under this chapter shall
8 not negotiate or purchase any easements or other interests in
9 land in any county known to be affected by the proposed project
10 prior to the informational meeting. After such meeting, if
11 notice by publication was properly made, a person seeking
12 rights under this chapter and a landowner may enter a voluntary
13 agreement for an interest in land without regard to whether
14 the landowner received notice by mail. Prior to entering a
15 voluntary agreement with a landowner who did not receive notice
16 of the informational meeting by mail, the person seeking rights
17 under this chapter shall provide such landowner copies of the
18 informational meeting materials presented by the commission,
19 the consumer advocate, and the person seeking rights under
20 this chapter. Nothing in this paragraph shall prohibit a
21 person seeking rights under this chapter from holding a meeting
22 prior to the informational meeting required by this section to
23 provide general information regarding a project to a community
24 that does not include negotiating specific terms with specific
25 landowners.

26 b. A person seeking rights under this chapter may contact
27 landowners within five miles of the project's proposed route
28 for the purpose of seeking voluntary easements under the same
29 conditions as provided in paragraph "a".

30 Sec. 11. Section 478.5, Code 2025, is amended to read as
31 follows:

32 **478.5 Notice — objections filed.**

33 1. Upon the filing of such petition, the utilities
34 commission shall cause a notice, addressed to the citizens
35 of each county through which the proposed line or lines

1 will extend, to be published in a newspaper located in each
2 such county for two consecutive weeks. Said notice shall
3 contain a general statement of the contents and purpose of the
4 petition, a general description of the lands and highways to
5 be traversed by the proposed line or lines, and shall state
6 that any objections thereto must be filed in writing with the
7 commission not later than twenty days after the date of last
8 publication of the notice. Any person, company, city, or
9 corporation whose rights may be affected, shall have the right
10 to file written objections to the proposed improvement or to
11 the granting of such franchise; such objections shall be filed
12 with the commission not later than twenty days after the date
13 of last publication and shall state the grounds therefor. The
14 commission may allow objections to be filed later in which
15 event the applicant must be given reasonable time to ~~meet~~
16 respond to such late objections.

17 2. If a route is readjusted due to an objection filed
18 pursuant to this section, the utilities commission shall not
19 require the individual, company, or corporation asking for the
20 franchise to resubmit a petition for a franchise pursuant to
21 section 478.2.

22 Sec. 12. Section 478.6, Code 2025, is amended by adding the
23 following new subsection:

24 NEW SUBSECTION. 4. The commission shall render a decision
25 on a petition requesting the power of eminent domain no later
26 than one year after the request for eminent domain is received
27 by the commission.

28 Sec. 13. Section 478.17, Code 2025, is amended to read as
29 follows:

30 **478.17 Access to lines — damages.**

31 1. Individuals or corporations operating transmission lines
32 shall have reasonable access to the transmission lines for the
33 purpose of constructing, reconstructing, enlarging, repairing,
34 or locating the poles, wires, or construction and other devices
35 used in or upon any line, but shall pay to the owner of the

1 lands and of crops on the lands all damages to the lands or
2 crops caused by entering, using, and occupying the lands for
3 those purposes. This section shall not prevent the execution
4 of an agreement between the person, ~~or~~ company, or corporation
5 owning or operating the lines and the owner of the land or
6 crops regarding the use of the land.

7 2. A claim for damages pursuant to this section due to crop
8 yield loss shall not be precluded from renegotiation under
9 section 6B.52 on the grounds that the damages were apparent at
10 the time of settlement unless the settlement expressly releases
11 the person, company, or corporation owning or operating the
12 lines from claims for damages to the productivity of the soil.
13 A landowner that seeks damages under this section not subject
14 to a release shall notify the person, company, or corporation
15 in writing fourteen days prior to harvest in each year to
16 assess crop deficiency.

17 Sec. 14. NEW SECTION. 478.17A Drainage tile — liability.

18 For an applicant exercising the power of eminent domain
19 pursuant to this chapter, an electric transmission owner
20 as defined in section 478.16 shall be liable for repairs
21 of drainage tile installed prior to the installation of
22 the electric transmission line, when the installation,
23 construction, operation, maintenance, or repair of the electric
24 transmission line is the proximate cause of the damage to
25 the drainage tile. The operator's liability pursuant to
26 this section shall continue for the life of the electric
27 transmission line and shall include all of the following:

28 1. The full replacement costs of the drainage tile,
29 including, without limitation, material, labor, and equipment.

30 2. The reclamation and restoration of topsoil as part of any
31 drainage tile repair.

32 Sec. 15. Section 478.29, subsection 1, Code 2025, is amended
33 to read as follows:

34 1. A person who violates a provision of this chapter or
35 section 476A.18 is subject to a civil penalty, which may

1 be levied by the commission, of not more than one hundred
2 dollars per violation or one thousand dollars per day of a
3 continuing violation, whichever is greater. Civil penalties
4 collected pursuant to **this section** shall be forwarded by the
5 chief operating officer of the commission to the treasurer
6 of state to be credited to the general fund of the state and
7 appropriated to the department of health and human services for
8 purposes of the low income home energy assistance program and
9 the weatherization assistance program.

10 Sec. 16. NEW SECTION. **478.34 Land restoration standards.**

11 1. The commission shall adopt rules pursuant to chapter
12 17A regarding the restoration of agricultural lands following
13 construction of an electric transmission line subject to
14 this chapter that is capable of operating at two hundred
15 kilovolts or greater. Rules adopted under this section shall
16 implement the following requirements, which shall not apply
17 within the corporate limits of a city, to property excluded
18 from a franchise under section 478.1, subsection 2, or to any
19 construction, activity, or facility not subject to a franchise
20 under this chapter:

21 a. An electric transmission owner shall repair a damaged
22 underground drain tile as soon as practicable during
23 construction of the electric transmission line. Permanent
24 repairs to the damaged underground drain tile shall be
25 completed as soon as practicable after the initial construction
26 of the electric transmission line is complete. The repairs
27 made to the damaged drain tile shall be of at least equal
28 quality, size, and flow capacity of the original drain tile.

29 b. Following the construction of an electric transmission
30 line, the electric transmission owner shall remove from the
31 easement area all rock larger than three inches in average
32 diameter not native to the soil of the excavated land. The
33 rock removed from the excavated land that cannot be used to
34 backfill shall be disposed of at a location and in a manner
35 agreed upon by the electric transmission owner and the

1 landowner.

2 *c.* Upon completion of construction activities on a property,
3 the electric transmission owner shall deep till agricultural
4 land, including right-of-way access points or roads traversed
5 by heavy construction equipment, to alleviate soil compaction.
6 The land shall be tilled at least eighteen inches deep in land
7 used for crop production and twelve inches deep in other lands
8 unless otherwise agreed to by the landowner.

9 *d.* Upon completion of the electric transmission line, the
10 electric transmission owner shall restore the soil conservation
11 practices and structures damaged during construction of the
12 electric transmission line to the elevation and grade existing
13 on the land prior to the construction. The soil used to
14 repair embankments intended to retain water shall be well
15 compacted. Any vegetation disturbed during construction shall
16 be reestablished, including cover crops when appropriate.

17 *e.* Following compaction of the land, agricultural land that
18 is not in row crop or small grain production at the time of
19 construction, including hay ground and land in conservation or
20 set-aside programs, shall be reseeded and a cover crop shall
21 be utilized when appropriate. Seeding for cover crops may be
22 delayed if the construction of the electric transmission line
23 is completed too late in the year for a cover crop to become
24 established and is not required if the land will be tilled in
25 the following year. The landowner may request ground cover
26 to prevent soil erosion in areas where construction on the
27 electric transmission line is completed if the season is not
28 suitable for seeding a cover crop.

29 *f.* Unless agreed upon by the electric transmission owner
30 and the landowner, the electric transmission owner shall remove
31 field entrances or temporary roads built for the purpose of
32 constructing the electric transmission line upon the completion
33 of construction and restore the area to its previous use.

34 *g.* An electric transmission owner shall use good utility
35 practices for constructing the electric transmission line in

1 wet conditions, such as electing to use matting or padding when
2 utilizing heavy equipment. An electric transmission owner
3 shall grade and till any rutted land to restore, to the extent
4 practicable, the original condition of the land prior to the
5 construction of the electric transmission line. If agreed
6 upon by the electric transmission owner and the landowner,
7 the landowner may repair any damage caused by construction
8 activities in wet conditions and the electric transmission
9 owner shall reimburse the landowner for the reasonable cost
10 incurred to repair the damage. If an electric transmission
11 owner utilizes heavy equipment in wetlands or mudflats, mats or
12 other measures shall be utilized to minimize soil disturbance.

13 *h.* The electric transmission owner shall designate a point
14 of contact for inquiries or claims from an affected person.
15 The designation shall include a name, a telephone number, an
16 email address, and an address.

17 2. *a.* If an electric transmission owner and a landowner
18 dispute a potential violation of the restoration standards
19 provided in subsection 1, the commission may appoint a
20 qualified individual to inspect the property for compliance.
21 If the qualified individual determines that there has been
22 a violation of the applicable restoration standards, the
23 commission shall provide oral notice, followed by written
24 notice, to the electric transmission owner and the contractor
25 operating for the electric transmission owner and order
26 corrective action to comply with the restoration standards.
27 The electric transmission owner shall be responsible for the
28 costs of the corrective action.

29 *b.* If the electric transmission owner or the contractor
30 for the electric transmission owner does not comply with a
31 valid order for corrective action issued by the commission, the
32 commission may issue an order requiring corrective action to be
33 taken and may impose civil penalties under section 478.29.

34 *c.* The commission shall instruct the inspector appointed by
35 the commission regarding the content of the statutes and rules

1 and the responsibility of the inspector to require restoration
2 conforming with the standards established in subsection 1.

3 3. *a.* A petitioner for a franchise for an electric
4 transmission line shall file with the petition a written land
5 restoration plan that documents how the requirements and rules
6 of subsection 1 will be met. The petitioner shall provide a
7 copy of the plan to all landowners of property that will be
8 disturbed by the construction of the electric transmission
9 line.

10 *b.* Nothing in this section shall preclude the application
11 of provisions for protecting or restoring property that are
12 different than those prescribed in subsection 1, in rules
13 adopted under subsection 1, or in the land restoration plan,
14 if the alternative provisions are contained in agreements
15 independently executed by the electric transmission owner and
16 the landowner. Independent agreements for land restoration
17 between the electric transmission owner and the landowner shall
18 be in writing and shall be made available to the commission
19 upon request.

20 *c.* The commission may by waiver allow variations from the
21 requirements of subsection 1 if the electric transmission
22 owner requesting a waiver satisfies the standards set forth
23 in section 17A.9A and if the alternative methods proposed
24 by the electric transmission owner would restore the land
25 to a condition as good as or better than as provided for in
26 subsection 1.

27 *d.* The commission may waive preparation of a separate land
28 restoration plan if the electric transmission owner enters into
29 an agricultural impact mitigation plan or similar agreement
30 with the appropriate agencies of this state that satisfies
31 the requirements of subsection 1. If a mitigation plan or
32 agreement is used to fully or partially meet the requirements
33 of a land restoration plan, the statement or agreement shall
34 be filed with the commission and shall be considered to be,
35 or to be part of, the land restoration plan for purposes of

1 subsection 1.

2 4. Nothing in this section shall limit, expand, or otherwise
3 modify the rights of access and obligations for damages set
4 forth in section 478.17.

5 5. The requirements of this section shall apply only to
6 electric transmission line construction projects commenced on
7 or after June 1, 2025.

8 Sec. 17. NEW SECTION. **478.35 Particular damage claims.**

9 1. When the electric transmission line owner's interest
10 in the landowner's property was acquired by the exercise of
11 eminent domain pursuant to this chapter, compensable losses may
12 include but are not limited to any of the following:

13 a. Loss or reduced yield of crops or forage on the electric
14 transmission line right-of-way, whether caused directly by
15 construction or from disturbance of usual farm operations.

16 b. Loss or reduced yield of crops from land near the
17 electric transmission line right-of-way resulting from lack of
18 timely access to the land or other disturbance of usual farm
19 operations, including interference with irrigation or drainage.

20 c. Costs associated with the application of fertilizer,
21 lime, or organic material by the landowner to restore land
22 disturbed by construction to full productivity.

23 d. Loss of or damage to trees of commercial value that
24 occurs at the time of construction or restoration, or at the
25 time of any subsequent work by the individual, company, or
26 corporation operating the transmission line.

27 e. The cost of or losses in moving or relocating livestock,
28 and the loss of gain by or the death or injury of livestock
29 caused by the interruption or relocation of normal feeding.

30 f. Erosion and soil compaction on lands attributable to
31 electric transmission line construction.

32 g. Damage to farm equipment caused by striking debris or
33 other material reasonably associated with electric transmission
34 line construction while engaged in normal farming operations as
35 defined in section 480.1.

1 *h.* Damage to soil or water conservation structures caused
2 by construction, restoration, or subsequent work by the
3 individual, company, or corporation operating the transmission
4 line including but not limited to terraces, grassed waterways,
5 water and sediment control basins, ponds, saturated buffers,
6 and biofilters.

7 *i.* Damage to irrigation or drainage systems caused
8 by construction, restoration, or subsequent work by the
9 individual, company, or corporation operating the transmission
10 line.

11 2. A claim for damages pursuant to this section shall not be
12 precluded from renegotiation under section 6B.52 on the grounds
13 that the damages were apparent at the time of settlement unless
14 the settlement expressly releases the individual, company,
15 or corporation operating the transmission line from the
16 claim. The landowner shall notify the individual, company, or
17 corporation in writing fourteen days prior to harvest in each
18 year to assess crop deficiency. The landowner may submit a
19 global positioning yield map to demonstrate such crop loss, but
20 the information contained in such map shall not be dispositive
21 as to the extent or causation of the damages, which may be
22 contested by the individual, company, or corporation operating
23 the transmission line.

24 3. A landowner that incurred damage under this section
25 is eligible for compensation for damages. A landowner may
26 file a claim for damages against an individual, company, or
27 corporation operating the transmission line in small claims
28 or district court for a violation of this section or pursue
29 remedies under section 478.36.

30 Sec. 18. NEW SECTION. 478.36 Hearing — commission member
31 attendance.

32 All hearings initiated under this chapter shall follow the
33 attendance rules governing commission members as provided in
34 section 476.33, subsection 5.

35 Sec. 19. Section 479.5, subsection 3, paragraph a, Code

1 2025, is amended to read as follows:

2 a. A pipeline company shall hold informational meetings
3 in each county in which real property or property rights will
4 be affected at least thirty days prior to filing the petition
5 for a new pipeline. A member of the commission or a person
6 designated by the commission shall serve as the presiding
7 officer at each meeting, shall present an agenda for the
8 meeting, which shall include a summary of the legal rights
9 of the affected landowners, and shall distribute and review
10 the statement of individual rights required under section
11 6B.2A. At least one member of the commission shall attend each
12 informational meeting. If at any point during the meeting
13 no member of the commission is available for any reason, the
14 meeting shall pause until at least one member of the commission
15 returns. A formal record of the meeting shall not be required.

16 Sec. 20. Section 479.5, subsection 5, Code 2025, is amended
17 to read as follows:

18 5. a. A ~~pipeline company~~ person seeking rights under this
19 chapter shall not negotiate or purchase any easements or other
20 interests in land in any county known to be affected by the
21 proposed project prior to the informational meeting. After
22 such meeting, if notice by publication was properly made, a
23 person seeking rights under this chapter and a landowner may
24 enter a voluntary agreement for an interest in land without
25 regard to whether the landowner received notice by mail. Prior
26 to entering a voluntary agreement with a landowner who did not
27 receive notice of the informational meeting by mail, the person
28 seeking rights under this chapter shall provide such landowner
29 copies of the informational meeting materials presented by
30 the commission, the consumer advocate, and the person seeking
31 rights under this chapter. Nothing in this paragraph shall
32 prohibit a person seeking rights under this chapter from
33 holding a meeting prior to the informational meeting required
34 by this section to provide general information regarding a
35 project to a community that does not include negotiating

1 specific terms with specific landowners.

2 b. A person seeking rights under this chapter may contact
3 landowners within five miles of the project's proposed route
4 for the purpose of seeking voluntary easements under the same
5 conditions as provided in paragraph "a".

6 Sec. 21. Section 479.9, Code 2025, is amended to read as
7 follows:

8 **479.9 Objections.**

9 1. Any person, corporation, company, or city whose rights
10 or interests may be affected by a proposed pipeline or lines
11 or gas storage facilities may file written objections to the
12 proposed pipeline or lines or gas storage facilities or to the
13 granting of a permit.

14 2. If a pipeline or line route is readjusted or a gas
15 storage facility is relocated due to an objection filed
16 pursuant to this section, the utilities commission shall not
17 require a pipeline company to resubmit an application for a
18 permit pursuant to section 479.5.

19 Sec. 22. Section 479.12, Code 2025, is amended to read as
20 follows:

21 **479.12 Final order — condition.**

22 The commission may grant a permit in whole or in part upon
23 terms, conditions, and restrictions as to safety requirements
24 and as to location and route as determined by it to be just
25 and proper. Before a permit is granted to a pipeline company,
26 the commission, after a public hearing as provided in this
27 chapter, shall determine whether the services proposed to be
28 rendered will promote the public convenience and necessity, and
29 an affirmative finding to that effect is a condition precedent
30 to the granting of a permit. The commission shall render a
31 decision on a petition requesting the power of eminent domain
32 no later than one year after the request for eminent domain is
33 received by the commission.

34 Sec. 23. Section 479.25, Code 2025, is amended to read as
35 follows:

1 **479.25 Damages.**

2 1. A pipeline company operating a pipeline or a gas
3 storage area shall have reasonable access to the pipeline or
4 gas storage area for the purpose of constructing, operating,
5 maintaining, or locating pipes, pumps, pressure apparatus or
6 other stations, wells, devices, or equipment used in or upon
7 the pipeline or gas storage area; shall pay the owner of the
8 land for the right of entry and the owner of crops for all
9 damages caused by entering, using, or occupying the land; and
10 shall pay to the owner all damages caused by the completion
11 of construction of the pipeline due to wash or erosion of the
12 soil at or along the location of the pipeline and due to the
13 settling of the soil along and above the pipeline. However,
14 this section shall not prevent the execution of an agreement
15 between the pipeline company and the owner of land or crops
16 with reference to the use of the land.

17 2. A claim for damages pursuant to this section due to crop
18 yield loss shall not be precluded from renegotiation under
19 section 6B.52 on the grounds that the damages were apparent
20 at the time of settlement unless the settlement expressly
21 releases the pipeline company from claims for damages to the
22 productivity of the soil. A landowner that seeks damages under
23 this section not subject to a release shall notify the pipeline
24 company in writing fourteen days prior to harvest in each year
25 to assess crop deficiency.

26 Sec. 24. Section 479.29, Code 2025, is amended by adding the
27 following new subsection:

28 NEW SUBSECTION. 1A. For a pipeline company exercising
29 the power of eminent domain pursuant to this chapter, the
30 pipeline company shall be liable for repairs of drain tile
31 installed prior to the installation of the pipeline, when the
32 installation, construction, operation, maintenance, or repair
33 of the pipeline is the proximate cause of the damage to the
34 drainage tile. The pipeline company's liability pursuant to
35 this section shall continue for the life of the pipeline and

1 shall include all of the following:

2 *a.* The full replacement costs of the drainage tile,
3 including, without limitation, material, labor, and equipment.

4 *b.* The reclamation and restoration of topsoil as part of any
5 drainage tile repair.

6 Sec. 25. Section 479.29, subsection 5, Code 2025, is amended
7 to read as follows:

8 5. If the pipeline company or its contractor does not
9 comply with the requirements of [this section](#), with the
10 land restoration plan, or with an independent agreement on
11 land restoration or line location executed in accordance
12 with [subsection 10](#), the county board of supervisors or a
13 landowner may petition the commission for an order requiring
14 corrective action to be taken. In addition, the county board
15 of supervisors or a landowner may file a complaint with the
16 commission seeking imposition of civil penalties pursuant to
17 section 479.31. A landowner may supply a copy of the complaint
18 to the county board of supervisors where the complaint
19 originated.

20 Sec. 26. Section 479.45, subsection 1, paragraphs b and f,
21 Code 2025, are amended to read as follows:

22 *b.* Loss or reduced yield of crops or yield from land near
23 the pipeline right-of-way resulting from lack of timely access
24 to the land or other disturbance of usual farm operations,
25 including interference with irrigation or drainage.

26 *f.* Erosion and soil compaction on lands attributable to
27 pipeline construction.

28 Sec. 27. Section 479.45, subsection 1, Code 2025, is amended
29 by adding the following new paragraphs:

30 NEW PARAGRAPH. *h.* Damage to soil or water conservation
31 structures caused by construction, restoration, or subsequent
32 work by the pipeline company including but not limited to
33 terraces, grassed waterways, water and sediment control basins,
34 ponds, saturated buffers, and biofilters.

35 NEW PARAGRAPH. *i.* Damage to irrigation or drainage systems

1 caused by construction, restoration, or subsequent work by the
2 pipeline company.

3 Sec. 28. Section 479.45, subsection 2, Code 2025, is amended
4 to read as follows:

5 2. A claim for ~~damage for future crop deficiency within~~
6 ~~the easement strip~~ damages incurred under this section shall
7 not be precluded from renegotiation under [section 6B.52](#) on
8 the grounds that it was apparent at the time of settlement
9 unless the settlement expressly releases the pipeline company
10 from claims for damage to the productivity of the soil. ~~The A~~
11 ~~landowner that seeks damages under this section not subject to~~
12 a release shall notify the pipeline company in writing fourteen
13 days prior to harvest in each year to assess crop deficiency.
14 The landowner may submit a global positioning yield map to
15 demonstrate such crop loss, but the information contained in
16 such map shall not be dispositive as to the extent or causation
17 of the damages, which may be contested by the pipeline company.

18 Sec. 29. Section 479.45, Code 2025, is amended by adding the
19 following new subsection:

20 NEW SUBSECTION. 3. A landowner that incurred damage under
21 this section is eligible for compensation for damages. A
22 landowner may file a claim for damages against a pipeline
23 company in small claims or district court for a violation of
24 this section or pursue remedies under section 479.46.

25 Sec. 30. Section 479.46, subsection 7, Code 2025, is amended
26 to read as follows:

27 7. As used in [this section](#), "*damages*" means compensation for
28 damages to the land, crops, and other personal property caused
29 by the construction activity of installing a pipeline and its
30 attendant structures or underground storage facility, or a
31 compensable loss as described in section 479.45, subsection 1,
32 but does not include compensation for a property interest, and
33 "*landowner*" includes a farm tenant.

34 Sec. 31. NEW SECTION. 479.50 **Hearing — commission member**
35 **attendance.**

1 All hearings initiated under this chapter shall follow the
2 attendance rules governing commission members as provided in
3 section 476.33, subsection 5.

4 Sec. 32. Section 479A.11, Code 2025, is amended to read as
5 follows:

6 **479A.11 Damages.**

7 1. A pipeline company operating pipelines or underground
8 storage shall be given reasonable access to the pipelines and
9 storage areas for the purpose of constructing, operating,
10 maintaining, or locating their pipes, pumps, pressure
11 apparatus, or other stations, wells, devices, or equipment used
12 in or upon a pipeline or storage area, but shall pay the owner
13 of the lands for the right of entry and the owner of crops on
14 the land all damages caused by entering, using, or occupying
15 the lands for these purposes; and shall pay to the owner of the
16 lands, after the completion of construction of the pipeline or
17 storage, all damages caused by settling of the soil along and
18 above the pipeline, and wash or erosion of the soil along the
19 pipeline due to the construction of the pipeline. However,
20 this section does not prevent the execution of an agreement
21 with other terms between the pipeline company and the owner of
22 the land or crops with reference to their use.

23 2. A claim for crop yield loss damages pursuant to this
24 section shall not be precluded from renegotiation under section
25 6B.52 on the grounds that the damages were apparent at the time
26 of settlement unless the settlement expressly releases the
27 pipeline company from claims for damages to the productivity of
28 the soil. A landowner that seeks damages under this section
29 not subject to a release shall notify the pipeline company in
30 writing fourteen days prior to harvest in each year to assess
31 crop deficiency.

32 Sec. 33. Section 479B.4, subsection 3, Code 2025, is amended
33 to read as follows:

34 3. The pipeline company shall hold informational meetings
35 in each county in which real property or property rights will

1 be affected at least thirty days prior to filing the petition
2 for a new pipeline. A member of the commission, or a person
3 designated by the commission, shall serve as the presiding
4 officer at each meeting and present an agenda for the meeting,
5 which shall include a summary of the legal rights of the
6 affected landowners. At least one member of the commission
7 shall attend each informational meeting. If at any point
8 during the meeting no member of the commission is available for
9 any reason, the meeting shall pause until at least one member
10 of the commission returns. No formal record of the meeting
11 shall be required. The meeting shall be held at a location
12 reasonably accessible to all persons who may be affected by
13 granting the permit.

14 Sec. 34. Section 479B.4, subsection 6, Code 2025, is amended
15 to read as follows:

16 6. a. A ~~pipeline company~~ person seeking rights under
17 this chapter shall not negotiate or purchase an easement or
18 other interest in land in a county known to be affected by the
19 proposed project prior to the informational meeting. After
20 such meeting, if notice by publication was properly made, a
21 person seeking rights under this chapter and a landowner may
22 enter a voluntary agreement for an interest in land without
23 regard to whether the landowner received notice by mail. Prior
24 to entering a voluntary agreement with a landowner who did not
25 receive notice of the informational meeting by mail, the person
26 seeking rights under this chapter shall provide such landowner
27 copies of the informational meeting materials presented by
28 the commission, the consumer advocate, and the person seeking
29 rights under this chapter. Nothing in this paragraph shall
30 prohibit a person seeking rights under this chapter from
31 holding a meeting prior to the informational meeting required
32 by this section to provide general information regarding a
33 project to a community that does not include negotiating
34 specific terms with specific landowners.

35 b. A person seeking rights under this chapter may contact

1 landowners within five miles of the project's proposed route
2 for the purpose of seeking voluntary easements under the same
3 conditions as provided in paragraph "a".

4 Sec. 35. Section 479B.7, Code 2025, is amended by adding the
5 following new subsection:

6 NEW SUBSECTION. 3. If a pipeline route is readjusted due
7 to an objection filed pursuant to this section, the utilities
8 commission shall not require a pipeline company to resubmit an
9 application for a permit pursuant to section 479B.4.

10 Sec. 36. Section 479B.9, Code 2025, is amended to read as
11 follows:

12 **479B.9 Final order — condition.**

13 The commission may grant a permit in whole or in part upon
14 terms, conditions, and restrictions as to location and route
15 as it determines to be just and proper. A permit shall not be
16 granted to a pipeline company unless the commission determines
17 that the proposed services will promote the public convenience
18 and necessity. The commission shall render a decision on a
19 petition requesting the power of eminent domain no later than
20 one year after the request for eminent domain is received by
21 the commission.

22 Sec. 37. Section 479B.16, Code 2025, is amended by adding
23 the following new subsection:

24 NEW SUBSECTION. 4. Notwithstanding subsection 1, a
25 pipeline company granted a permit for a pipeline to carry
26 liquefied carbon dioxide shall not be authorized to use
27 eminent domain except under at least one of the following
28 circumstances:

29 a. The pipeline was permitted by the commission prior to the
30 effective date of this Act.

31 b. The pipeline has the sole purpose of attaching to another
32 pipeline, a shipper, customer, or off-taker or delivery point
33 to a pipeline for which eminent domain is authorized under
34 paragraph "a".

35 Sec. 38. Section 479B.17, Code 2025, is amended to read as

1 follows:

2 **479B.17 Damages.**

3 1. A pipeline company operating a pipeline or an
4 underground storage facility shall have reasonable access to
5 the pipeline or underground storage facility for the purpose
6 of constructing, operating, maintaining, or locating pipes,
7 pumps, pressure apparatus, or other stations, wells, devices,
8 or equipment used in or upon the pipeline or underground
9 storage facility. A pipeline company shall pay the owner of
10 the land for the right of entry and the owner of crops for all
11 damages caused by entering, using, or occupying the lands and
12 shall pay to the owner all damages caused by the completion
13 of construction of the pipeline due to wash or erosion of the
14 soil at or along the location of the pipeline and due to the
15 settling of the soil along and above the pipeline. However,
16 this section does not prevent the execution of an agreement
17 between the pipeline company and the owner of the land or crops
18 with reference to the use of the land.

19 2. A claim for crop yield loss damages pursuant to this
20 section shall not be precluded from renegotiation under section
21 6B.52 on the grounds that the damages were apparent at the time
22 of settlement unless the settlement expressly releases the
23 pipeline company from claims for damages to the productivity of
24 the soil. A landowner that seeks damages under this section
25 not subject to a release shall notify the pipeline company in
26 writing fourteen days prior to harvest in each year to assess
27 crop deficiency.

28 Sec. 39. Section 479B.20, Code 2025, is amended by adding
29 the following new subsection:

30 NEW SUBSECTION. 1A. For a pipeline company exercising
31 the power of eminent domain pursuant to this chapter, the
32 pipeline company shall be liable for repairs of drainage tile
33 installed prior to the installation of the pipeline, when the
34 installation, construction, operation, maintenance, or repair
35 of the pipeline is the proximate cause of the damage to the

1 drainage tile. The pipeline company's liability pursuant to
2 this section shall continue for the life of the pipeline and
3 shall include all of the following:

4 a. The full replacement costs of the drainage tile,
5 including, without limitation, material, labor, and equipment.

6 b. The reclamation and restoration of topsoil as part of any
7 drainage tile repair.

8 Sec. 40. Section 479B.20, subsection 5, Code 2025, is
9 amended to read as follows:

10 5. If the pipeline company or its contractor does not
11 comply with the requirements of [this section](#), with the land
12 restoration plan or line location, or with an independent
13 agreement on land restoration executed in accordance with
14 subsection 10, the county board of supervisors or a landowner
15 may petition the commission for an order requiring corrective
16 action to be taken. In addition, the county board of
17 supervisors or a landowner may file a complaint with the
18 commission seeking imposition of civil penalties under section
19 479B.21. A landowner may supply a copy of the complaint to the
20 county board of supervisors where the complaint originated.

21 Sec. 41. Section 479B.29, subsection 1, paragraphs b and f,
22 Code 2025, are amended to read as follows:

23 b. Loss or reduced yield of crops or yield from land near
24 the pipeline right-of-way resulting from lack of timely access
25 to the land or other disturbance of usual farm operations,
26 including interference with irrigation or drainage.

27 f. Erosion and soil compaction on lands attributable to
28 pipeline construction.

29 Sec. 42. Section 479B.29, subsection 1, Code 2025, is
30 amended by adding the following new paragraphs:

31 NEW PARAGRAPH. h. Damage to soil or water conservation
32 structures caused by construction, restoration, or subsequent
33 work by the pipeline company including but not limited to
34 terraces, grassed waterways, water and sediment control basins,
35 ponds, saturated buffers, and biofilters.

1 NEW PARAGRAPH. *i.* Damage to irrigation or drainage systems
2 caused by construction, restoration, or subsequent work by the
3 pipeline company.

4 Sec. 43. Section 479B.29, subsection 2, Code 2025, is
5 amended to read as follows:

6 2. A claim for ~~damage for future crop deficiency within~~
7 ~~the easement strip~~ damages incurred under this section shall
8 not be precluded from renegotiation under [section 6B.52](#) on
9 the grounds that it was apparent at the time of settlement
10 unless the settlement expressly releases the pipeline company
11 from claims for damage to the productivity of the soil. ~~The A~~
12 landowner that seeks damages under this section not subject to
13 a release shall notify the pipeline company in writing fourteen
14 days prior to harvest in each year to assess crop deficiency.
15 The landowner may submit a global positioning yield map to
16 demonstrate such crop loss, but the information contained in
17 such map shall not be dispositive as to the extent or causation
18 of the damages, which may be contested by the pipeline company.

19 Sec. 44. Section 479B.29, Code 2025, is amended by adding
20 the following new subsection:

21 NEW SUBSECTION. 3. A landowner that incurred damage under
22 this section is eligible for compensation for damages. A
23 landowner may file a claim for damages against a pipeline
24 company in small claims or district court for a violation of
25 this section or pursue remedies under section 479B.30.

26 Sec. 45. Section 479B.30, subsection 7, Code 2025, is
27 amended to read as follows:

28 7. As used in [this section](#), “*damages*” means compensation for
29 damages to the land, crops, and other personal property caused
30 by the construction of a pipeline and its attendant structures
31 or underground storage facility, or a compensable loss as
32 described in section 479B.29, subsection 1, but does not
33 include compensation for a property interest, and “*landowner*”
34 includes a farm tenant.

35 Sec. 46. NEW SECTION. **479B.34 Hearing — commission member**

1 attendance.

2 All hearings initiated under this chapter shall follow the
3 attendance rules governing commission members as provided in
4 section 476.33, subsection 5.

5 Sec. 47. RETROACTIVE APPLICABILITY. The section of this Act
6 amending section 479B.4, subsection 6, applies retroactively to
7 voluntary agreements between a pipeline company and a landowner
8 entered into on or after January 1, 2024.>

9 2. Title page, by striking lines 1 through 8 and
10 inserting <An Act relating to public utilities, including
11 utility commission member attendance at hearings and
12 informational meetings, utility commission decision timelines,
13 land restoration standards, claims for damages, easement
14 negotiations, and the exercise of eminent domain for the
15 construction of hazardous liquid pipelines, making civil
16 penalties applicable, and including retroactive applicability
17 provisions.>>

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